economic loss rule. But such claims are barred when they arise from—or are not independent of—the parties' underlying contracts. (See *Robinson*, *supra*, 34 Cal.4th at p. 991 [holding that "the economic loss rule does not bar [the plaintiff's] fraud and intentional misrepresentation claims because they were independent of [the defendant's] breach of contract"]). *Rattagan* did not address application of the economic loss rule to claims of fraudulent inducement by concealment. (See *Rattagan*, *supra*, 17 Cal.5th at p. 41, fn. 12—"This court has granted review[3] in two other cases—*Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828 [300 Cal. Rptr. 3d 715], review granted February 1, 2023, S277568 and *Kia America v. Superior Court* (Feb. 3, 2022, D079858) (nonpub. opn.), review granted April 20, 2022, S273170—both of which involve claims of fraudulent inducement by concealment claims as well as the potential interplay with remedies available under the Song-Beverly Consumer Warranty Act (Civ. Code, § 1791 et seq.). We do not address these issues here.") The California Supreme Court has saved that discussion for another day.

The court declines to follow the federal trial court decisions relied upon by defendant Ford. While instructive and perhaps even persuasive, "A written trial court ruling has no precedential value." (*Santa Ana Hospital Med. Ctr. v. Belshe* (1997) 56 Cal.App.4th 819, 831; *Budrow v. Dave & Buster's of California* (2009) 171 Cal.App.4th 875, 885; *Bolanos v. Superior Court* (2008) 169 Cal.App.4th 744, 761; *In re Molz* (2015) 127 Cal.App.4th 836, 845).

IV. CONCLUSION

Based on the foregoing, the defendant's motion for judgment on the pleadings is DENIED. The Court will prepare the Order.

Calendar Line # 7

Case Name American Express National Bank vs Rizalino Leon

Case No. 25CV471472

Motion to Enter Judgment

I. BACKGROUND

This collections case stems from a non-payment of a credit card account. On July 25, 2025, Plaintiff American Express National Bank ("Bank") filed a Complaint against Defendant Rizalino Leon ("Leon") for the outstanding debt and alleged damages in the amount of $10,875.27 and costs.

On September 4, 2025, the parties filed a Notice of Settlement and Stipulation for Entry of Judgment Pending Performance pursuant to Code of Civil Procedure section 664.6. (Notice of Settlement; Stipulation; and Declaration of Ren, p. 2; Exhibit A). Defendant Leon signed the agreement on August 28, 2025, and the plaintiff signed the agreement on August 29, 2025. (Stipulation, at p. 2). The settlement agreement set forth that the defendant was indebted to Plaintiff in the amount of $10,875.27 relative to an account ending in 1007. (*Id.*). Defendant agreed to pay Plaintiff $8,160.00 to resolve the action. (*Id.;* Declaration of Ren, p. 2; Exhibit A). The settlement agreement set forth a payment plan starting on or before September 10, 2025 to August 10, 2027, comprising of twenty-four (24) monthly payments in the amount of $340.00 per month. (*Id.,* at p. 2-3). The parties stipulated that in the event that the defendant failed to make the scheduled payments, the defendant would be in default. (*Id*). The agreement included an understanding that upon default, the plaintiff could seek to enforce the judgment pursuant to section 664.6 in the amount of $10,875.27, plus costs, and less any amounts received by the defendant. The agreement expressly stated that the plaintiff could seek a motion or ex parte application to enforce

[3] Review of these two decisions has since been dismissed. (*Dhital v. Nissan North America, Inc.* (2024) 327 Cal.Rptr.3d 898 [559 P.3d 1083]; *KIA America, Inc. v. Superior Court* (Dec. 18, 2024, No. S273170) ___Cal.5th___ [2024 Cal. LEXIS 7098]).

the agreement for the balance and costs, and less payments made. (*Id.*). Plaintiff asserts that Defendant failed to make payments per the settlement agreement. (Declaration of Ren, at p. 2).

On October 24, 2025, Plaintiff American Express National Bank ("Bank") filed this motion to enter judgment pursuant to Code of Civil Procedure section 664.6. The motion was accompanied by a proof of service indicating mail service to defense counsel on that same day.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 10 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the following: moving papers, including: Plaintiff's notice of motion to enter judgment (totaling 3 pages); memorandum of points and authorities in support of the plaintiff's motion (totaling 3 pages); Declaration of Zhen Ren and attached Exhibit A in support of the plaintiff's motion; proof of service; and the pleadings.

II. **LEGAL STANDARD**

Code of Civil Procedure section 664.6 provides in relevant part:

> "(a) If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.
> (b) For purposes of this section, a writing is signed by a party if it is signed by any of the following:
> (1) The party.
> (2) An attorney who represents the party.
> (3) If an insurer is defending and indemnifying a party to the action, an agent who is authorized in writing by the insurer to sign on the party's behalf. This paragraph does not apply if the party whom the insurer is defending would be liable under the terms of the settlement for any amount above the policy limits."

Strict compliance with the statutory requirements is necessary before a court can enforce a settlement agreement under this statute. (*Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc.* (2002) 103 Cal.App.4th 30, 37). To enforce a written settlement agreement under Code of Civil Procedure section 664.6, the following three elements must be met: (1) the parties must have come to a meeting of the minds on all material points; (2) there must be a writing that contains the material terms of the agreement; and (3) the writing must be signed by the parties. (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 797-98).

Enforcement under section 664.6 "require[s] the signatures of the parties seeking to enforce the agreement under [Code of Civil Procedure] section 664.6 and against whom the agreement is sought to be enforced." (*J.B.B. Investment Partners, Ltd. v. Fair* (2014) 232 Cal.App.4th 974, 985). Section 664.6's "requirement of a 'writing signed by the parties' must be read to apply to all parties bringing the section 664.6 motion and against whom the motion is directed." (*Harris v. Rudin, Richman & Appel* (1999) 74 Cal.App.4th 299, 306; see *Sully-Miller Contracting Co. v. Gledson/Cashman Const., Inc.* (2002) 103 Cal.App.4th 30, 35-37 ["A written settlement agreement is not enforceable under section 664.6 unless it is signed by all of the parties to the agreement, not merely the parties against whom the agreement is sought to be enforced."]). "A procedure in which a settlement is evidenced by one writing signed by both sides minimizes the possibility of … dispute[s] and legitimizes the summary nature of the section 664.6 procedure." (*Robertson v. Chen* (1996) 44 Cal.App.4th 1290, 1293).

III. ANALYSIS

Here, all requirements to enforce the settlement have been met. There was a meeting of the minds on all material terms, including the amount, scope and payment terms, including a monthly payment scheduled of the settlement. The parties signed and filed the stipulation containing all of the material terms. The stipulation and agreement is signed by all parties. Thus, the Court grants the motion to enforce and will enter a judgment amount of $11,385.07 against Defendant Leon. The judgment amount is calculated as follows: total amount of $10,875.25 plus $509.80 in costs.

The motion is unopposed. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

IV. CONCLUSION

Based on the foregoing, and the motion being unopposed, the Court GRANTS the motion to enter a judgment under Code of Civil Procedure section 664.6. The judgment amount of $11,385.07 is entered against Defendant Leon. The Court will prepare the formal Order.

Calendar Line # 8
Case Name Alpha Omega House Corp. vs The Board of Trustees of the Leland Stanford Junior University
Case No. 25CV473890

Demurrer

Before the court is defendant The Board of Trustees of The Leland Stanford Junior University's demurrer to plaintiff's complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. BACKGROUND

Leland and Jane Stanford ("Stanfords") gifted land for the creation of a university to honor their son by executing a Founding Grant on November 11, 1885. (Complaint, ¶1). The Stanfords created the university through a trust that continues in force to this day. (Complaint, ¶2). The trustees are the fiduciaries responsible for implementing the Stanfords' wishes for the beneficiaries of the Founding Grant. (*Id.*).

In 1903, the Santa Clara County Superior Court confirmed six separate Amendments to the Founding Grant made by Jane Stanford. (Complaint, ¶3). The first Amendment in 1897 directed that "student associations shall be allowed to build houses [on the leased lots]." (Complaint, ¶4). The second Amendment of May 31, 1899 addressed Jane Stanford's wishes that student associations "shall be permitted to build houses for the use of the members. . ." (Complaint, ¶5).

Plaintiff Alpha Omega House Corporation ("AOHC") entered into a Ground Lease [with defendant The Board of Trustees ("Trustees") of The Leland Stanford Junior University ("University")] in 1937. (Complaint, ¶9). The 1976 Ground Lease, at issue here, provided the University intended the Ground Lease to be "renewed indefinitely, as long as both Association and House remain active at Stanford." (*Id.*; see also ¶90). Pursuant to paragraph 11(b) of the